

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case No. 2018-7800

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF JANICE MEYERS PROETT, LICENSE NO. LPC 1032,

Applicant.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselor Examiners ("Board") and Janice Meyers Proett ("Applicant"), as follows:

1. Applicant was licensed to practice as a professional counselor ("LPC") in the State of Colorado on October 14, 1994, having been issued license number LPC 1032. Applicant's license expired on June 30, 2005.

2. On or about August 14, 2018, Applicant filed a reinstatement application to practice as a LPC in the State of Colorado ("Application").

3. The Board has jurisdiction over Applicant and the subject matter of this Stipulation and Final Agency Order ("Order").

4. It is the intent of the parties and the purpose of this Order to provide for a settlement of all matters arising out of the complaint in case number 2018-7800 without the necessity of holding a formal hearing. This Order is a full and final resolution of case number 2018-7800. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Applicant, as of the effective date of this Order.

5. Applicant admits the following:

a. On or about August 14, 2018, Applicant submitted the Application.

b. On the Application, Applicant answered "yes" to the question which states: "Since the date your license expired, have you been practicing

psychotherapy and/or as a Licensed Professional Counselor in the state of Colorado?"

c. Applicant practiced professional counseling with an expired license for less than one (1) year.

6. By virtue of the admissions in paragraph 5 above, Applicant admits and the Board finds that Applicant violated section 12-43-222(1)(b) and (g)(I), C.R.S., which state:

12-43-222. Prohibited activities--related provisions. (1) A person licensed, registered, or certified under this article 43 violates this article 43 if he or she:

(b) Has violated or attempted to violate, directly or indirectly, or assisted or abetted the violation of, or conspired to violate any provision or term of this article or rule promulgated pursuant to this article or any order of a board established pursuant to this article;

(g)(I) Has acted or failed to act in a manner that does not meet the generally accepted standards of the professional discipline under which the person practices. Generally accepted standards may include, at the board's discretion, the standards of practice generally recognized by state and national associations of practitioners in the field of the person's professional discipline.

7. By virtue of the admissions contained in paragraph 5, Applicant specifically agrees to accept a license subject to the terms and conditions outlined below. Applicant further agrees that the Board is authorized by sections 12-43-212 and 12-43-224(3)(c), C.R.S., to grant Applicant a license. Applicant consents to the following limitations to her license within the meaning of section 24-4-104(11), C.R.S. Applicant acknowledges that by accepting this license in lieu of a formal hearing, Applicant waives all remedies outlined in sections 12-43-212 and 24-4-104(9), C.R.S.

ADMONISHMENT

8. On the basis of the findings set forth in paragraphs 5 and 6, the Board hereby admonishes Applicant for violations of section 12-43-222(1)(b) and (g)(I), C.R.S. This Order is effective as a Letter of Admonition, set forth by section 12-43-224(3)(d), C.R.S. As part of the admonishment, Applicant agrees to the following terms as a Board Order:

CONTINUING EDUCATION

9. Within twelve (12) months of the effective date of this Order, Applicant must successfully complete 30 hours of Board-approved professional continuing education ("CE") courses in the areas of professional practice, ethics, and jurisprudence. Applicant shall obtain Board approval of the courses prior to enrolling in each course. Upon completion of a course, Applicant shall ensure that a certificate of completion is provided to the Board. These hours of CE completed pursuant to this section shall be required in addition to, and may not be counted toward, the mandatory Continuing Professional Development requirements for an active Colorado license or to meet any other licensure requirements.

TERMS AND CONDITIONS

10. Applicant will strictly observe the prohibitions set forth in section 12-43-222, C.R.S., and will ensure that she does not engage in any activities that are prohibited and that she practices in accordance with the generally accepted standards of practice.

11. All expenses incurred or associated with education or any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Applicant and not the Board.

12. In the event Applicant relocates at any time prior to completing the terms of this Order, Applicant shall notify the Board of the change of address within 30 days of the effective date of such change.

13. Applicant is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to section 12-43-224, C.R.S., and hereby waives those rights. Further, Applicant also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

14. This Order is entered into by Applicant voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

15. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

16. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of section 12-43-222, C.R.S., and shall have the

same force and effect as an order entered after a formal disciplinary hearing pursuant to section 12-43-224, C.R.S.

17. Applicant acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Applicant to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

18. This Order constitutes the entire agreement between Applicant and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

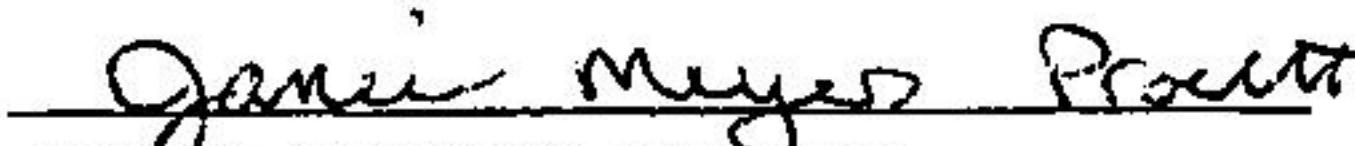
19. This Order shall become effective upon (a) mailing by first-class mail to Applicant at Applicant's address of record with the Board, or (b) service by electronic means on Applicant at Applicant's electronic address of record with the Board. Applicant hereby consents to service by electronic means if Applicant has an electronic address on file with the Board.

20. This Order shall be admissible as evidence at any hearing held before the Board.

21. This Order shall be a public record in the custody of the Board.

AGREED TO AND ACCEPTED BY:

APPLICANT


JANICE MEYERS PROETT
LPC 1032

AGREED TO AND ORDERED BY:

**STATE BOARD OF LICENSED
PROFESSIONAL COUNSELOR EXAMINERS**


DARCIE MAGNUSON
Program Director

Effective this 17th day of December
2018.